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Provision of December 21, 2023
Register of provisions
n. 611 of December 21, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Attorney
Guido Scorza, member, and Secretary General Fabio Mattei;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016 (hereinafter "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018, containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU) 2016/679";

HAVING REGARD to the report of the Local Police of the Municipality of Ancona – Section of Commercial and Market Police – which reports on a control carried out on May 19, 2022, at the accommodation facility named "Hotel della Vittoria," located in Ancona, via Fabio Filzi 2, where the presence of a video surveillance system, consisting of 3 functioning cameras, was verified, not indicated by appropriate informational signs;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the Guarantor's Regulation No. 1/2000;

REPORTING Prof. Pasquale Stanzione;

PREMISE

1. The report received and the initiation of the procedure.

By note dated June 1, 2022, the Local Police of the Municipality of Ancona – Section of Commercial and Market Police – transmitted to this Authority the report of the control carried out on May 19, 2022, by the aforementioned Police Force, at the accommodation facility named "Hotel della Vittoria," located in Ancona, via Fabio Filzi 2 – managed by Gestioni Aziendali s.r.l. – which verified the presence of a functioning video surveillance system and the absence of appropriate informational signs regarding the presence of the cameras.

The Office, by note dated September 27, 2022 (prot. n. 51534), proceeded to notify Gestioni Aziendali s.r.l. of the initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Articles 5, paragraph 1, letter a) and 13 of the Regulation.

Although informed of the possibility to submit defensive writings or documents regarding the sanctioning procedure against it, the data controller did not submit any documentation in this regard.

2. The legal framework of the processing carried out

The use of video surveillance systems may result, depending on the positioning of the cameras and the quality of the recorded images, in the processing of personal data. Such processing must be carried out in compliance with the general principles contained in Article 5 of the Regulation and, in particular, the principle of transparency, which presupposes that "data subjects must always be informed that they are about to enter a monitored area."

To this end, the data controller must place appropriate informational signs according to the indications contained in point 3.1. of the provision on video surveillance - April 8, 2010 [1712680] (in this sense, also the FAQs on video surveillance published on the Authority's website).

Similarly, the Guidelines No. 3/2019 of the European Data Protection Board on the processing of personal data through video devices, point 7) specify that "Regarding video surveillance, the most

important information must be indicated [by the controller] on the warning sign itself (first level), while further mandatory details can be provided by other means (second level).

The guidelines also provide that "Such information may be provided in combination with an icon to give, in a clearly visible, intelligible, and legibly clear manner, an overview of the intended processing (Article 12, paragraph 7, of the GDPR). The format of the information must adapt to the various locations."

The information should be positioned in such a way as to allow the data subject to easily recognize the circumstances of the surveillance before entering the monitored area (approximately at eye level) "to allow the data subject to estimate which area is covered by a camera so as to avoid surveillance or adjust their behavior, if necessary."

3. The outcome of the investigation and the sanctioning procedure.

Based on the findings, it emerged that the video surveillance system, installed at the accommodation facility named "Hotel della Vittoria," located in Ancona, via Fabio Filzi 2, managed by Gestioni Aziendali s.r.l., was active and functioning and that no sign bearing the information required by Article 13 of the Regulation had been posted.

In this case, it is therefore established that personal data processing has been carried out through a video surveillance system, in the absence of the required information.

The processing of personal data carried out by the Company through the video surveillance system is therefore unlawful, as stated above, in relation to Articles 5, paragraph 1, letter a) and 13 of the Regulation.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation.

The processing of personal data carried out by the Hotel della Vittoria is therefore unlawful, as stated above, in relation to Articles 5, paragraph 1, letter a) (principle of transparency) and 13 (information) of the Regulation.

The violation established in the terms outlined in the reasoning cannot be considered "minor," taking into account the nature, severity, and duration of the violation, the degree of responsibility, and the manner in which the supervisory authority became aware of the violation (see recital 148 of the Regulation).

As a result of the investigation and having established the unlawfulness of the conduct as described above, it must therefore:

- be ordered to the data controller, pursuant to Article 58, paragraph 2, letter d) of the Regulation, to proceed with the application of appropriate signs containing information on the processing as indicated in point 2 of this provision
- an injunction order must be adopted pursuant to Article 58, paragraph 2, letter i) of the Regulation for the application of an administrative monetary sanction.

5. Injunction order.

The Authority, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary sanction provided for by Article 83, paragraph 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data carried out by the company through the video surveillance system, the unlawfulness of which has been established, in the terms outlined above, in relation to Articles 5, paragraph 1, letter a) and 13 of the Regulation.

With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative monetary sanction and its quantification, considering that the sanction must be "effective, proportionate, and dissuasive in each individual case" (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

with regard to the nature, severity, and duration of the violation, the conduct of the data controller has been considered, as well as the responsibility related to the failure to fulfill the obligation to provide information to the data subjects;

the absence of specific previous violations against the controller relating to breaches of data protection

regulations;

the circumstance that Gestioni Aziendali s.r.l., the data controller, did not cooperate with the Authority during the proceedings nor demonstrated compliance with the legal obligation.

It is also believed that the economic conditions of the offender, determined with reference to the financial statements for the year 2022, are relevant in this case, considering the aforementioned principles of effectiveness, proportionality, and dissuasiveness to which the Authority must adhere in determining the amount of the sanction (Article 83, paragraph 1, of the Regulation).

In light of the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €5,000.00 (five thousand) for the violation of Articles 5 and 13 of the Regulation.

In this context, also considering the type of violation established, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/2019, the publication of this provision on the Authority's website should be carried out.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Authority, are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY declares, pursuant to Articles 57, paragraph 1, letter f) and 83 of the Regulation, the unlawfulness of the processing carried out by Gestioni Aziendali s.r.l. through the use of the video surveillance system installed at the accommodation facility named "Hotel della Vittoria," located in Ancona, via Fabio Filzi 2, in the terms outlined in the reasoning, for the violation of Articles 5 and 13 of the Regulation;

ORDERS

the company Gestioni Aziendali s.r.l., VAT No. 02442070427, to pay the sum of €5,000.00 (five thousand) as an administrative monetary sanction for the violations indicated in this provision;

COMMANDS

the same company to comply, pursuant to Article 58, paragraph 2, letter d) of the Regulation, with the provisions of the Regulation regarding the processing of data, with reference to the placement, where it has not already done so, of appropriate informational signs regarding the presence of cameras;

the same Gestioni Aziendali s.r.l. to pay the sum of €5,000.00 (five thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981. It is represented that pursuant to Article 166, paragraph 8 of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction within the deadline of

pursuant to Article 10, paragraph 3, of Legislative Decree No. 150 of September 1, 2011, provided for the submission of the appeal as indicated below.

ORDERS

pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Guarantor No. 1/2019, the publication of this provision on the Guarantor's website and considers that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

It is also ordered that the initiatives undertaken to implement the provisions of this decision be communicated and that an adequately documented response be provided in accordance with Article 157 of the Code, within 90 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for by Article 83, paragraph 5, letter e) of the Regulation.

Pursuant to Article 78 of the Regulation, Articles 152 of the Code, and Article 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be submitted to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, December 21, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Stanzione

THE SECRETARY GENERAL

Mattei